

SENATE No. 2764

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, December 18, 2025.

The committee on Housing to whom was referred the petition (accompanied by bill, Senate, No. 996) of Adam Gomez for legislation to secure housing for returning citizens, report the accompanying bill (Senate, No. 2764).

For the committee,
Julian Cyr

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In the One Hundred and Ninety-Fourth General Court
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An Act to secure housing for returning citizens.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 16I of chapter 6A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “secretary”, in line 30, the
3 following words:- and (iv) costs associated with the reentry and formerly incarcerated persons
4 program established in section 31 of chapter 23B.

5 SECTION 2. Chapter 23B of the General Laws is hereby amended by adding the
6 following section:-

7 Section 37. (a) There shall be a reentry and formerly incarcerated persons program
8 administered by the executive office of housing and livable communities. The executive office
9 shall be the central coordinating agency for the program. The executive office, in coordination
10 with the department of correction, the office of probation, and the parole board shall help
11 incarcerated people: (i) understand housing options before and after their release; (ii) find
12 pathways to both short-term and permanent housing; and (iii) receive financial supports, such as
13 housing vouchers, from the commonwealth. For the purposes of this section the term

“understand housing options” shall include: (i) an ongoing effort by the executive office to evaluate and ensure such understanding; (ii) the executive office’s establishment of tools for instruction of such understanding; and (iii) evaluating outcomes in the understanding of housing options for incarcerated people. Such tools and evaluations shall include oral and written surveys and setting guidelines and goals for measurable success based on the frame of reference of a formerly incarcerated person.

The executive office shall partner with established community-based organizations with a record of working with reentry of incarcerated and formerly incarcerated persons to assist with positive outcomes and impacts. Such community-based organizations should prioritize including affected populations, such as formerly incarcerated persons and their families, in the leadership of their organization.

The executive office, in coordination with other relevant state agencies, shall provide for housing, supportive programs, and oversight of housing formerly incarcerated persons in any housing receiving funds administered by any state agency or regulated by the executive office. The executive office shall develop and implement outcome-based measurements for the success of such housing, supportive programs, and oversight.

(b) For any funds administered by the executive office, any state agency, or any state authority for the purposes of providing for affordable housing, the executive office shall review the implementation of the program and the expenditure of funds, including tax expenditures, for the program no less than annually. The executive office review shall include, but not be limited to:

(i) The number and demographic data of persons served by the program;

(ii) The compliance of each beneficiary of state funds for the purposes of the program and the state funds received regarding the preferences for persons served by the program; and

(iii) Any opportunities to improve the effectiveness of the program in meeting its purposes, intent or goals based on feedback and data gathered from formerly incarcerated persons, persons currently experiencing housing instability related to former incarceration, and community-based organizations, staff participants, and partner agencies that serve such persons.

(c) Annually, the executive office shall submit a report of its review of the program, including but not limited to, the program's impacts and outcomes to the joint committee on housing and the joint committee on community development and small businesses and the clerks of the house of representatives and the senate.

SECTION 3. Subsection (a) of section 3 of chapter 23G of the General Laws is hereby amended by adding the following clause:-

(44) to provide for and assist any agency or authority of the commonwealth in providing housing opportunities for incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 4. Section 19 of chapter 23G is hereby amended by inserting after the word "housing", in line 29, the following words:- ; provided that, such housing project assisted by the agency shall include a priority and preference for incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 5. Subsection (b) of section 60 of chapter 40 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after the word "AMI", in

lines 121 and 125, the following words:- provided that, for any housing units assisted under this section, there shall be a priority for housing incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 6. Subsection (c) of section 60B of chapter 40 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by inserting after the word “agreement”, in line 80, the following words:- provided that, for any residential units constructed under this section, there shall be a priority for housing incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 7. Section 20 of chapter 40B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “affected”, in line 25, the following words:- provided however, that the regional need shall include affordable housing for reentry housing for low and moderate-income incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 8. Section 4 of chapter 40H of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after clause (g) the following clause:-

(g^{1/2}) to provide for and assist any CDC, state agency or state authority in providing housing opportunities for incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 9. Clause (i) of the first paragraph of section 5 of said chapter 40H, as so appearing, is hereby amended by inserting after the word “housing”, in line 24, the following words:- ; provided that, such project shall include a priority and preference for incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 10. Section 1 of chapter 40R of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “rate”, in line 24, the following words:- provided however, that any such housing development shall include a priority for the housing of low and moderate-income incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons in any such development.

SECTION 11. Section 6 of chapter 40R of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word “housing”, in line 27, the following words:- provided however, that such ordinance or by-law shall include a priority for the housing of low and moderate-income incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons in any such projects.

SECTION 12. Subsection (a) of section 4 of chapter 40V of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after clause (i) the following clause:-

(ii) provides that, for any residential units constructed under this chapter, there shall be a priority for housing incarcerated persons about to be released from a correctional facility and for formerly incarcerated persons.

SECTION 13. Subsection (s) of section 6 of chapter 62 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by adding the following paragraph:-

(7) In allocating tax credits pursuant to this section or the federal Low Income Housing Tax Credit program of the Tax Reform Act of 1986, the executive office shall include in its Qualified Allocation Plan a requirement of a priority and preference for all applications for

100 credits for reentry housing opportunities for incarcerated persons about to be released from a
101 correctional facility and for formerly incarcerated persons.

102 SECTION 14. Section 31H of chapter 63 of the General Laws, as so appearing, is hereby
103 amended by adding the following subsection:-

104 (k) In allocating tax credits pursuant to this section or the federal Low-Income Housing
105 Tax Credit program of the Tax Reform Act of 1986, the executive office shall establish in its
106 Qualified Allocation Plan a requirement of a priority and preference category for all applications
107 for credits for reentry housing opportunities for incarcerated persons about to be released from a
108 correctional facility and for formerly incarcerated persons.

109 SECTION 15. Section 32 of chapter 121B of the General Laws, as appearing in the 2022
110 Official Edition, is hereby amended by inserting after the word “regulations”, in line 144, the
111 following words:- ; and (4) persons released from a correctional facility within the last 2 years.

112 SECTION 16. Subsection (b) of section 3 of chapter 121D of the General Laws is hereby
113 amended by adding the following paragraph:-

114 The fund shall provide for a requirement of a priority and preference category for all
115 applications for any expenditure from the fund, to an organization, for reentry housing
116 opportunities for incarcerated persons about to be released from a correctional facility and for
117 formerly incarcerated persons.

118 SECTION 17. Subsection (a) of chapter 121E of the General Laws, as appearing in the
119 2022 Official Edition, is hereby amended by inserting after the word “individuals”, in line 11, the

120 following words:- and reentry housing opportunities for incarcerated persons about to be released
121 from a correctional facility and for formerly incarcerated persons.

122 SECTION 18. Subsection (a) of section 3 of chapter 121F of the General Laws, as so
123 appearing, is hereby amended by inserting after the word “income” in line 35, the following
124 words:- ; and provided further that for such persons, there shall be a priority for housing
125 incarcerated persons about to be released from a correctional facility and for formerly
126 incarcerated persons.

127 SECTION 19. Section 3 of chapter 121G of the General Laws, as so appearing, is hereby
128 amended by inserting after the word “regulations”, in line 17, the following words:- ; provided
129 that, for any housing units funded under this section, there shall be a priority for housing
130 incarcerated persons about to be released from a correctional facility and for formerly
131 incarcerated persons.

132 SECTION 20. Section 4A of chapter 708 of the acts of 1966 is hereby amended by
133 adding the following paragraph:-

134 (q) Provide for and assist any agency or authority of the commonwealth in providing
135 housing opportunities for incarcerated persons about to be released from a correctional facility
136 and for formerly incarcerated persons.

137 SECTION 21. Section 7 of chapter 708 of the acts of 1966 is hereby amended by adding
138 the following sentence:- Notwithstanding any other provision of this section, tenant selection
139 plans shall include a priority and preference for incarcerated persons about to be released from a
140 correctional facility and for formerly incarcerated persons.

141 SECTION 22. Section 1 of chapter 99 of the acts of 2022 is hereby amended by inserting
142 after the words “with disabilities” the following words:- ; to create reentry housing opportunities
143 for incarcerated persons about to be released from a correctional facility and affordable housing
144 units for formerly incarcerated persons.

145 SECTION 23. Section 2 of chapter 99 of the acts of 2022 is hereby amended in item
146 7004-0058 by adding the following words:- ; provided further, that there shall be a priority for
147 such beneficiaries who are incarcerated persons about to be released from a correctional facility
148 and who are formerly incarcerated persons.

149 SECTION 24. Notwithstanding any general or special law, rule or regulation to the
150 contrary the executive office, in its capacity as a public housing agency shall, pursuant to section
151 3202 of Public Law 117-7, the American Rescue Plan Act of 2021, implement a priority for
152 emergency housing vouchers for incarcerated persons about to be released from a correctional
153 facility and for formerly incarcerated persons.